

		Based on the foregoing, the Court GRANTS the petition to compel arbitration and stays this action pending completion of arbitration. The Court sets an ADR Review hearing for June 7, 2027, 1:30 p.m., in Department N14. Defendant to give notice.
102	Cabaccang v. Costco Wholesale Corp., 2026-01560439	Demurrer – MOOT
103	Cloutier v. Khedraki, 2025-01503041	Motion re Approval of Settlement – CONTINUED OSC re Dismissal on Settled Case – CONTINUED Defendants Ousama Khedraki and Dima Khedraki (together, “Defendants”) move for an order approving the settlement reached between the parties. An enforceable settlement of an action involving a person lacking the capacity to make decisions can only be consummated with court approval. (Code Civ. Proc., § 372(a)(3) [guardian ad litem appearing for person who lacks legal capacity to make decisions may, with approval of the court, compromise the same].) A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court, rules 7.950, 7.950.5, 7.951, and 7.952. A petition for court approval of a compromise or settlement of a pending action to which a person with a disability is a party must be verified by the petitioner and, except as provided in rule 7.950.5 (which is not applicable here), submitted on form MC-350. (Cal. Rules of Court, rule 7.950.) Here, Defendants’ Motion is not verified or on the required form. Thus, the hearing on Defendants’ Motion and on the OSC re Dismissal is CONTINUED to September 28, 2026, at 9:00 a.m., in Department N14. Defendants are ORDERED to file and serve the proper forms no later than 16 days before the continued hearing date.

		Moving party to give notice.
104	County of Orange v. Nautilus Insurance Co., 2026-01547503	Motion for Leave to File Amended Complaint – GRANTED Motion for Judgment on the Pleadings – DENIED AS MOOT Plaintiff County of Orange moves for leave to file a first amended complaint against defendant Nautilus Insurance Company. Plaintiff is suing Defendant for failing to defend Plaintiff in a prior personal injury suit filed by Miguel Angel Moran regarding an incident that occurred on January 1, 2022 at or near the sidewalk located at 1928 S. Grand Avenue, Santa Ana. Plaintiff leases the subject property from the owner, Centurion Partners Santa Ana, LLC. After filing the action, Defendant informed Plaintiff that even though Plaintiff is named an additional insured under the landlord's CGL insurance policy, the address set forth on the endorsement is 888 N. Main Street, Suite 159, Santa Ana. Plaintiff argues that this mistake was made by either or both the landlord and Defendant, and that Plaintiff was never notified of the mistake. Once Plaintiff was advised of Defendant's position, it filed the instant motion for leave to amend to seek reformation to change the address on the endorsement to the correct address. Defendant argues the motion for leave to amend should be denied because it is barred by the statute of limitations, as the policy was entered into on or around February 23, 2021 and Plaintiff did not file this action until February 11, 2026. Defendant further argues that the additional claim for breach of the implied covenant of good faith and fair dealing is unnecessary and duplicative of the bad faith claim in the original pleading. Defendant contends that these defects cannot be cured by any further amendment.